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It's not a Merry Christmas for the Environment

22 December 2023

Forest & Bird and the Environmental Defence Society are dismayed that the new Government has just rammed through a dramatic assault on Aotearoa New Zealand's environment. The environmental protections that look after our special places have been cast aside with the creation of the power for Cabinet to override resource management law at will for the next three years.

The Government now has the power to exempt parts of the country from any or all of the Resource Management Act requirements and allow destruction of our precious indigenous plants and animals and pollution of our rivers and coasts. This will be able to occur without proper consideration of the impact on nature and neighbouring communities.

This is a bitter blow for nature, our communities and our wellbeing. It undermines years of work by governments, businesses, community groups, iwi and NGOs to create law that helps look after our incredible environment and that looks after people.

These sweeping 'Henry VIII' powers, which have been made into law in the new Resource Management (Natural and Built Environment and Spatial Planning Repeal and Interim Fast-

track Consenting) Act, are unfettered and unnecessary. They will allow Ministers to override legislation by regulation without having to go back through Parliament. Unlike post-earthquake and COVID-19 emergency legislation there isn't a stated purpose to place limits on the use of the powers. The Minister responsible for the legislation Hon Chris Bishop has previously called similar powers "constitutionally inappropriate".

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